

LAW AND MOTION TENTATIVE RULINGS

DATE: JULY 28, 2026 TIME: 8:30 A.M.

TENTATIVE RULINGS ARE NOT POSTED IN UNLAWFUL DETAINER CASES

Notice to prevailing parties: Local Rule 2.10.01 requires you to submit a proposed formal order incorporating, verbatim, the language of any tentative ruling – or attaching and incorporating the tentative by reference - or an order consistent with the announced ruling of the Court, in accordance with California Rule of Court 3.1312. **Such proposed order is required even if the prevailing party submitted a proposed order prior to the hearing with two exceptions: (1) in unopposed matters where the moving party has provided a detailed proposed order or JCC form of order, or (2) where the tentative is simply to “grant”.** Failure to comply with Local Rule 2.10.01 may result in the imposition of sanctions following an order to show cause hearing, if a proposed order is not timely filed.

No. 25CV01051

RIOS v. ESQUIBEL, et al.

**(UNOPPOSED) DEFENDANT MARK ESQUIBEL’S MOTION TO QUASH
DEPOSITION SUBPOENA AND FOR ISSUANCE OF PROTECTIVE ORDER**

The unopposed motion is denied. The motion was not served. (Proofs of Unsuccessful Service, May 29, 2026 and May 14, 2026.)

No. 24CV02816

HERNANDEZ v. GENERAL MOTORS

**PLAINTIFF’S MOTION FOR LEAVE TO FILE FIRST AMENDED
COMPLAINT**

DEFENDANT’S MOTION FOR SUMMARY JUDGMENT

Plaintiff’s motion for leave to file first amended complaint is granted. Amended complaint shall be filed no later than August 14, 2026. On May 22, 2026, this Court continued these hearings and ordered the parties to provide supplemental briefing addressing the Court’s concerns with the year and a half delay in bringing the motion to amend. Supplemental briefing was due by plaintiff on June 25, 2026, and by defendant on July 16, 2026. Plaintiff complied and

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provided additional information regarding the delay; defendant did not file any supplemental papers. The Court is persuaded that the delay in seeking leave to amend was not dilatory and that no prejudice has been shown to defendant.

Defendant's motion for summary judgment is denied as moot.

No. 25CV02484

DOE v. CABRILLO COMMUNITY COLLEGE DISTRICT

**PLAINTIFF'S MOTION TO VACATE DISMISSAL AND FOR
RECONSIDERATION**

The motion is denied with prejudice. Defendant shall submit a form of judgment of dismissal for signature.

I. BACKGROUND AND MOTION

Self-represented plaintiff, John Doe, brings this action against defendant arising out of his attendance at, and alleged suspension from, defendant Cabrillo Community College District ("Cabrillo"). The second amended complaint ("SAC") alleges twenty causes of action.

Cabrillo filed a notice of vexatious litigant status with this Court on January 6, 2026. Cabrillo then filed a motion for an order staying this action pending the Court's action on defendant's vexatious litigant notice, or in the alternative, to dismiss. Cabrillo asserted that the plaintiff in this case, "John Doe" is Alex Yakovlev, an individual who was declared a vexatious litigant in April 2009 by the San Francisco County Superior Court. That court entered an order preventing Yakovlev from filing any litigation in California courts while self-represented without first obtaining leave of the presiding judge in the court where the proposed litigation was to be filed pursuant to Code of Civil Procedure section 391.7. Cabrillo maintained plaintiff filed this action in violation of San Francisco County Superior court order and failed to obtain the mandatory prefiling order within 10 days after Cabrillo filed its notice of vexatious litigant status, and so the action must be dismissed as a matter of law pursuant to Code of Civil Procedure section 391.7, subdivision (c).

Following the fully briefed motion and hearing, the Court granted Cabrillo's motion and found plaintiff, as a vexatious litigant, did not seek leave from the presiding judge, as required, before filing this action. Plaintiff also failed to obtain an order permitting filing after Cabrillo filed its Vexatious Litigant Notice. The Court dismissed this action with prejudice pursuant to Code of Civil Procedure section 391.7, subdivision (c).